
PRELIMINARY PRINT

VOLUME 587 U. S. - PART 2

PAGES 391–837; 1001–1105

OFFICIAL REPORTS
OF
THE SUPREME COURT

MAY 28 THROUGH JUNE 17, 2019

RULES OF SUPREME COURT

AMENDMENTS TO FEDERAL RULES OF APPELLATE PROCEDURE

AMENDMENTS TO FEDERAL RULES OF BANKRUPTCY PROCEDURE

AMENDMENTS TO FEDERAL RULES OF CRIMINAL PROCEDURE

AMENDMENT TO FEDERAL RULES OF EVIDENCE

END OF VOLUME

CHRISTINE LUCHOK FALLON

REPORTER OF DECISIONS



NOTICE: This preliminary print is subject to formal revision before the bound volume is published. Users are requested to notify the Reporter of Decisions, Supreme Court of the United States, Washington, D.C. 20543, pio@supremecourt.gov, of any typographical or other formal errors.

For sale by the Superintendent of Documents, U. S. Government Publishing Office
Washington, D.C. 20402

JUSTICES
OF THE
SUPREME COURT
DURING THE TIME OF THESE REPORTS

JOHN G. ROBERTS, JR., CHIEF JUSTICE.
CLARENCE THOMAS, ASSOCIATE JUSTICE.
RUTH BADER GINSBURG, ASSOCIATE JUSTICE.
STEPHEN BREYER, ASSOCIATE JUSTICE.
SAMUEL A. ALITO, JR., ASSOCIATE JUSTICE.
SONIA SOTOMAYOR, ASSOCIATE JUSTICE.
ELENA KAGAN, ASSOCIATE JUSTICE.
NEIL M. GORSUCH, ASSOCIATE JUSTICE.
BRETT M. KAVANAUGH, ASSOCIATE JUSTICE.

RETIRED

JOHN PAUL STEVENS, ASSOCIATE JUSTICE.
SANDRA DAY O'CONNOR, ASSOCIATE JUSTICE.
ANTHONY M. KENNEDY, ASSOCIATE JUSTICE.
DAVID H. SOUTER, ASSOCIATE JUSTICE.

OFFICERS OF THE COURT

WILLIAM P. BARR, ATTORNEY GENERAL.*
NOEL J. FRANCISCO, SOLICITOR GENERAL.
SCOTT S. HARRIS, CLERK.
CHRISTINE LUCHOK FALLON, REPORTER OF
DECISIONS.
PAMELA TALKIN, MARSHAL.
LINDA S. MASLOW, LIBRARIAN.

*Attorney General Barr was presented to the Court on May 28, 2019.
See *post*, p. iii.

SUPREME COURT OF THE UNITED STATES

ALLOTMENT OF JUSTICES

It is ordered that the following allotment be made of the Chief Justice and Associate Justices of this Court among the circuits, pursuant to Title 28, United States Code, Section 42, and that such allotment be entered of record, effective October 19, 2018, viz.:

For the District of Columbia Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the First Circuit, STEPHEN BREYER, Associate Justice.

For the Second Circuit, RUTH BADER GINSBURG, Associate Justice.

For the Third Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Fourth Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the Fifth Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Sixth Circuit, SONIA SOTOMAYOR, Associate Justice.

For the Seventh Circuit, BRETT M. KAVANAUGH, Associate Justice.

For the Eighth Circuit, NEIL M. GORSUCH, Associate Justice.

For the Ninth Circuit, ELENA KAGAN, Associate Justice.

For the Tenth Circuit, SONIA SOTOMAYOR, Associate Justice.

For the Eleventh Circuit, CLARENCE THOMAS, Associate Justice.

For the Federal Circuit, JOHN G. ROBERTS, JR., Chief Justice.

October 19, 2018.

(For next previous allotment, see 586 U. S., Pt. 1, p. III.)

PRESENTATION OF THE ATTORNEY GENERAL

SUPREME COURT OF THE UNITED STATES

TUESDAY, MAY 28, 2019

Present: CHIEF JUSTICE ROBERTS, JUSTICE THOMAS,
JUSTICE GINSBURG, JUSTICE BREYER, JUSTICE ALITO,
JUSTICE SOTOMAYOR, JUSTICE KAGAN, JUSTICE GORSUCH,
and JUSTICE KAVANAUGH.

THE CHIEF JUSTICE said:

The Court now recognizes the Solicitor General of the United States.

Solicitor General Francisco said:

MR. CHIEF JUSTICE, and may it please the Court. I have the privilege to present to the Court the Eighty-fifth Attorney General of the United States, the Honorable William P. Barr, of Virginia.

THE CHIEF JUSTICE said:

General Barr, on behalf of the Court, I welcome you back as the Chief Legal Officer of the United States and as an officer of this Court. We recognize the very important responsibilities that are entrusted to you. Your commission as Attorney General of the United States will be noted in the records of the Court. We wish you well in the discharge of the duties of your new office.

Attorney General Barr said:

Thank you, MR. CHIEF JUSTICE.

INDEX

(Vol. 587 U. S., Part 2)

ABORTION.

Disposal of fetal remains by abortion providers—Rational basis review.—Indiana’s law relating to the disposition of fetal remains by abortion providers passes rational basis review; certiorari is denied on the question whether the State may bar the knowing provision of sex-, race-, or disability-selective abortions by abortion providers, as only the Seventh Circuit has addressed this kind of law. *Box v. Planned Parenthood of Indiana and Kentucky, Inc.*, p. 490.

ADMINISTRATIVE LAW.

Finality of Social Security Appeals Council dismissals—Judicial review of agency actions.—A Social Security Administration Appeals Council dismissal on timeliness grounds of a request for review after a claimant has had an administrative law judge hearing on the merits qualifies as a “final decision . . . made after a hearing” for purposes of allowing judicial review under 42 U. S. C. § 405(g). *Smith v. Berryhill*, p. 471.

ARMED CAREER CRIMINAL ACT.

Definition of burglary—Applicability of Armed Career Criminal Act.—Michigan’s third-degree home-invasion statute substantially corresponds to or is narrower than generic burglary for purposes of qualifying for enhanced sentencing under the Act. *Quarles v. United States*, p. 645.

ATOMIC ENERGY ACT.

State regulation of uranium mining—Preemption under the Atomic Energy Act.—The Fourth Circuit’s judgment that the Act does not preempt Virginia’s prohibition on uranium mining in the Commonwealth is affirmed. *Virginia Uranium, Inc. v. Warren*, p. 761.

BANKRUPTCY.

Bankruptcy discharge orders—Civil contempt for creditor violations—Standard for fair ground of doubt.—A creditor may be held in civil contempt for violating a bankruptcy court’s discharge order if there is no fair ground of doubt as to whether the order barred the creditor’s conduct. *Taggart v. Lorenzen*, p. 554.

CIVIL CONTEMPT. See **Bankruptcy**.

CIVIL PROCEDURE. See **Federal Courts.**

CIVIL RIGHTS ACT OF 1964.

Title VII charge-filing precondition—Procedural requirements in discrimination claims.—The charge-filing precondition to suit set out in Title VII of the Civil Rights Act of 1964 is not a jurisdictional requirement. *Fort Bend County v. Davis*, p. 541.

CLASS ACTION FAIRNESS ACT OF 2005. See **Federal Courts.**

CONSTITUTIONAL LAW.

Double jeopardy—Dual sovereignty doctrine—Separate sovereigns may prosecute same offense.—The dual sovereignty doctrine—under which two offenses are not the “same offence” for double jeopardy purposes if prosecuted by separate sovereigns—is upheld. *Gamble v. United States*, p. 678.

Freedom of speech—First Amendment retaliation claims—Probable cause as a bar to relief.—Because police officers had probable cause to arrest Bartlett, his First Amendment retaliatory arrest claim fails as a matter of law. *Nieves v. Bartlett*, p. 391.

Freedom of speech—Public access television—Private operator not a state actor for First Amendment purposes.—Petitioner, a private non-profit corporation designated by New York City to operate the public access channels on the Manhattan cable system owned by Time Warner (now Charter), is not a state actor subject to the First Amendment. *Manhattan Community Access Corp. v. Halleck*, p. 802.

CREDITORS’ RIGHTS. See **Bankruptcy.**

CRIMINAL LAW. See also **Armed Career Criminal Act; Constitutional Law.**

Pretrial detention credited as time served—Tolling of supervised-release terms.—Pretrial detention later credited as time served for a new conviction tolls a supervised-release term under 18 U. S. C. § 3624(e), even if the court must make the tolling calculation after learning whether the time will be credited. *Mont v. United States*, p. 514.

CRIMINAL PROCEDURE. See **Armed Career Criminal Act; Criminal Law.**

DEBTOR RELIEF. See **Bankruptcy.**

DOUBLE JEOPARDY. See **Constitutional Law.**

DUAL SOVEREIGNTY. See **Constitutional Law.**

DUE PROCESS. See **Abortion.**

ELECTION LAW.

Legislative standing in redistricting challenges—Authority to appeal adverse decisions.—The House of Delegates lacks standing to appeal the

ELECTION LAW—Continued.

invalidation of Virginia's redistricting plan. *Virginia House of Delegates v. Bethune-Hill*, p. 658.

EMPLOYMENT DISCRIMINATION. See **Civil Rights Act of 1964.**

ENERGY LAW. See **Atomic Energy Act; Federal-State Relations.**

ENVIRONMENTAL LAW. See **Atomic Energy Act.**

EQUAL PROTECTION. See **Abortion.**

FEDERAL COURTS. See also **Administrative Law; Bankruptcy; Civil Rights Act of 1964.**

Removal jurisdiction—Third-party counterclaim defendants in class actions.—Neither the general removal provision, 28 U. S. C. § 1441(a), nor the removal provision in the Class Action Fairness Act of 2005, § 1453(b), permit a third-party counterclaim defendant to remove a class-action claim from state to federal court. *Home Depot U. S. A., Inc. v. Jackson*, p. 435.

FEDERAL JURISDICTION. See **Federal Courts.**

FEDERAL PREEMPTION. See **Federal-State Relations.**

FEDERALISM. See **Atomic Energy Act; Constitutional Law.**

FEDERAL-STATE RELATIONS.

Federal law governs unless state law fills a gap—Outer Continental Shelf Lands Act.—Under the Outer Continental Shelf Lands Act, where federal law addresses the relevant issue, state law is not adopted as surrogate federal law on the Outer Continental Shelf. *Parker Drilling Management Services, Ltd. v. Newton*, p. 601.

FIFTH AMENDMENT. See **Constitutional Law.**

FINAL AGENCY ACTIONS. See **Administrative Law.**

FIRST AMENDMENT. See **Constitutional Law.**

FREEDOM OF SPEECH. See **Constitutional Law.**

GERRYMANDERING. See **Election Law.**

GOVERNMENT LITIGATION. See **Intellectual Property.**

HEALTH LAW. See **Abortion; Statutory Interpretation.**

INDIANA. See **Abortion.**

INTELLECTUAL PROPERTY.

Federal Government as petitioner—Status as a “person” under the Leahy-Smith America Invents Act.—The Federal Government is not a

INTELLECTUAL PROPERTY—Continued.

“person” capable of petitioning the Patent Trial and Appeal Board to institute patent review proceedings under the Act. *Return Mail, Inc. v. Postal Service*, p. 618.

JUDICIAL REVIEW. See **Administrative Law**.

JURISDICTION. See **Civil Rights Act of 1964**.

LABOR LAW. See **Federal-State Relations**.

LAW ENFORCEMENT. See **Constitutional Law**.

LEAHY-SMITH AMERICA INVENTS ACT. See **Intellectual Property**.

LEGISLATIVE AUTHORITY. See **Election Law**.

MEDIA LAW. See **Constitutional Law**.

MEDICARE. See **Statutory Interpretation**.

NATURAL RESOURCES. See **Atomic Energy Act**.

OUTER CONTINENTAL SHELF LANDS ACT. See **Federal-State Relations**.

PATENTS. See **Intellectual Property**.

POLICE CONDUCT. See **Constitutional Law**.

PREEMPTION. See **Atomic Energy Act**.

PROBATION AND PAROLE. See **Criminal Law**.

REDISTRICTING. See **Election Law**.

REMEDIES. See **Bankruptcy**.

REMOVAL JURISDICTION. See **Federal Courts**.

REPRODUCTIVE RIGHTS. See **Abortion**.

RETALIATION. See **Constitutional Law**.

RULEMAKING. See **Statutory Interpretation**.

SENTENCING. See **Armed Career Criminal Act; Criminal Law**.

SENTENCING GUIDELINES. See **Armed Career Criminal Act**.

SOCIAL SECURITY. See **Administrative Law**.

STANDING TO SUE. See **Election Law**.

STATE ACTION. See **Constitutional Law**.

STATE REGULATION. See **Abortion; Atomic Energy Act.**

STATUTORY INTERPRETATION. See also **Administrative Law; Intellectual Property.**

HHS policy change—Failure to comply with notice-and-comment rule-making obligations.—Because the Department of Health and Human Services neglected its statutory notice-and-comment obligations when it revealed a new policy that dramatically—and retroactively—reduced Medicare payments to hospitals servicing low-income patients, its policy must be vacated. *Azar v. Allina Health Services*, p. 566.

SUPERVISED RELEASE. See **Criminal Law.**

SUPREME COURT.

1. Presentation of Attorney General, p. III.
2. Rules of the Supreme Court, p. 1071.
3. Amendments to Federal Rules of Appellate Procedure, p. 1077.
4. Amendments to Federal Rules of Bankruptcy Procedure, p. 1087.
5. Amendments to Federal Rules of Criminal Procedure, p. 1095.
6. Amendment to Federal Rules of Evidence, p. 1101.

TELEVISION BROADCASTING. See **Constitutional Law.**

TITLE VII. See **Civil Rights Act of 1964.**

VIRGINIA. See **Atomic Energy Act; Election Law.**

VOTING RIGHTS. See **Election Law.**

WORDS AND PHRASES.

“[F]inal decision . . . made after a hearing.” 42 U. S. C. § 405(g). *Smith v. Berryhill*, p. 471.

“[P]erson.” *Leahy-Smith America Invents Act*. *Return Mail, Inc. v. Postal Service*, p. 618.

CUMULATIVE TABLE OF CASES REPORTED

(Vol. 587 U. S., Parts 1 and 2)

NOTES:

This volume provides the permanent United States Reports citation for all reported cases. Cases reported before page 1001 are those decided with opinions of the Court or decisions *per curiam*. Cases reported on page 1001 *et seq.* are those in which orders were entered. Although the Table of Cases Reported does not list orders denying a petition for writ of certiorari, such orders are included chronologically in this volume.

The syllabus in a case constitutes no part of the opinion of the Court but has been prepared by the Reporter of Decisions for the convenience of the reader. See *United States v. Detroit Timber & Lumber Co.*, 200 U. S. 321, 337 (1906).

A list of counsel who argued or filed briefs in a reported case, and who were members of the Court's Bar at the time the case was argued, are included in the United States Reports along with the Court's opinion in the case.

	Page
Acedo <i>v.</i> Pinedo	983
Adigun <i>v.</i> Express Scripts, Inc.	1060
Administration for Children's Servs. of New York City; Yi S <i>v.</i>	936
Adoption Star Agency; Feldman <i>v.</i>	1048
Adventist Health System/Sunbelt, Inc.; Konieczko <i>v.</i>	1060
Aguirre, <i>In re</i>	907
Alabama; Hall <i>v.</i>	1048
Albra, <i>In re</i>	907
Albrecht; Merck Sharp & Dohme Corp. <i>v.</i>	299
Alexander; <i>In re</i>	1035
Allen <i>v.</i> Cooper	1039
Allen <i>v.</i> International Assn. of Machinists Dist. 10	958
Allina Health Services; Azar <i>v.</i>	566
Alston <i>v.</i> Mississippi Dept. of Employment Security	981
Altitude Express, Inc. <i>v.</i> Zarda	960,984
American Airlines, Inc.; Fawemimo <i>v.</i>	936
Anderson, <i>In re</i>	1011
Anderson <i>v.</i> Michigan	1011

	Page
Animashaun <i>v.</i> Schmidt	1035
Apple, Inc. <i>v.</i> Pepper	273
A. R. <i>v.</i> Florida Dept. of Children and Families	937
Aranoff <i>v.</i> Aranoff	958
Ardaneh <i>v.</i> Massachusetts	1035
Argus Leader; Food Marketing Institute <i>v.</i>	906
Argus Leader Media; Food Marketing Institute <i>v.</i>	906
Arias Coreas <i>v.</i> Clarke	1070
Arizona; McKinney <i>v.</i>	1050
Arp; Kilpatrick <i>v.</i>	959
Arpaio, <i>In re</i>	969
Ashley, <i>In re</i>	968
Atelier Esthetique Institute of Esthetics, Inc.; Cain <i>v.</i>	958
Atlantic Richfield Co. <i>v.</i> Christian	1050
Attorney General; Barton <i>v.</i>	960,1013
Attorney General; Bonanno <i>v.</i>	983
Attorney General; Gun Owners of America, Inc. <i>v.</i>	901
Attorney General of Ark. <i>v.</i> Pharmaceutical Care Mgmt. Assn.	936
Avery, <i>In re</i>	1013
Avila; <i>In re</i>	1062
Azar <i>v.</i> Allina Health Services	566
B. <i>v.</i> Fischgrund	957
Baccus <i>v.</i> Clements	982
Backstrom; <i>In re</i>	1062
Bagwell <i>v.</i> Bank of America, N. A.	1061
Bahrampour <i>v.</i> United States	1060
Baltazar; Grigsby <i>v.</i>	906,1025
Baltimore City Dept. of Social Services; Moody <i>v.</i>	1013
Bank of America, N. A.; Bagwell <i>v.</i>	1061
Bank of America, N. A.; Gunchick <i>v.</i>	1070
Bank of America, N. A.; Rodriguez <i>v.</i>	957
Bank of America, N. A.; Schneider <i>v.</i>	1035
Baouch <i>v.</i> Werner Enterprises, Inc.	1050
Baouch <i>v.</i> Werner Trucking	1050
Barnes <i>v.</i> Commission, Lawyer Discip., State Bar of Tex.	1024
Barone <i>v.</i> Wells Fargo Bank, N. A.	957
Barr; Barton <i>v.</i>	960,1013
Barr; Bonanno <i>v.</i>	983
Barr; Gun Owners of America, Inc. <i>v.</i>	901
Bartlett; Nieves <i>v.</i>	391
Barton <i>v.</i> Barr	960,1013
Bell <i>v.</i> Leigh	1022
Benham <i>v.</i> Hagen	1024
Bent <i>v.</i> Strange	957

TABLE OF CASES REPORTED

XIII

	Page
Bent <i>v.</i> Talkin	1010
Berka <i>v.</i> Middletown	936
Berryhill; Biestek <i>v.</i>	97
Berryhill; Calderon-Lopez <i>v.</i>	1036
Berryhill; Daley <i>v.</i>	966
Berryhill; Freer <i>v.</i>	1048
Berryhill; Saunders <i>v.</i>	958
Berryhill; Smith <i>v.</i>	471
Bethune-Hill; Virginia House of Delegates <i>v.</i>	658,1060
Bhagat, <i>In re</i>	985
Bhatt; Davis <i>v.</i>	957
Biestek <i>v.</i> Berryhill	97
Biogen, Inc.; Lei Yin <i>v.</i>	958
Black <i>v.</i> Lindsay	981
Blauch <i>v.</i> Colorado	1010
Blomo; Ibeabuchi <i>v.</i>	1038
BNSF R. Co. <i>v.</i> Montana Eighth Jud. District Court, Cascade Cty.	1023
Bonanno <i>v.</i> Barr	983
Booker <i>v.</i> Johnson	936,1050
Boone <i>v.</i> Texas	967
Booth <i>v.</i> Kelley	957
Bostock <i>v.</i> Clayton Cty.	960,984
Bowden, <i>In re</i>	907
Bowles <i>v.</i> Florida Dept. of Corrections	1013
Box <i>v.</i> Planned Parenthood of Ind. and Ky., Inc.	490
Boyett <i>v.</i> Santistevan	1060
Bradshaw <i>v.</i> Davis	1010
Brandon <i>v.</i> Brandon	1022
Brasher; Dixit <i>v.</i>	1011
Brennan; Daniels <i>v.</i>	906
Brewington <i>v.</i> Oklahoma	1013
Brewster <i>v.</i> United States	1010
Brinson, <i>In re</i>	1013
Brooks <i>v.</i> Pennsylvania	967
Brooks <i>v.</i> McGinley	1038
Brotherston; Putnam Investments, LLC <i>v.</i>	959
Brown <i>v.</i> United States	1022
Brunson <i>v.</i> Hogan	1070
Bryant; Yerton <i>v.</i>	1022
Bucklew <i>v.</i> Precythe	119
Bureau of Alcohol, Tobacco, Firearms & Explosives; Guedes <i>v.</i>	928
Burke <i>v.</i> Raven Electric, Inc.	984
Burke <i>v.</i> United States	1022
Burns; Savoy <i>v.</i>	1013

	Page
Butler <i>v.</i> Clarke	935
Butler <i>v.</i> Davis	1061
C. <i>v.</i> Oregon Dept. of Human Services	1010
Cabello, <i>In re</i>	985
Cadian Capital Management, LP <i>v.</i> Klein	901
Cain <i>v.</i> Atelier Esthetique Institute of Esthetics, Inc.	958
Calderon-Lopez <i>v.</i> Berryhill	1036
Calhoun, <i>In re</i>	969
Caliber Home Loans, Inc.; King <i>v.</i>	957
California; Chuang <i>v.</i>	981
California; Williams <i>v.</i>	983
Callahan <i>v.</i> United States	1022
Campos, <i>In re</i>	984
Casa de Maryland; Department of Homeland Security <i>v.</i>	1038
C. B. <i>v.</i> Fischgrund	957
Chabot <i>v.</i> Ohio A. Philip Randolph Institute	1024
Chambers <i>v.</i> Sarcone	1011
Chapdelaine; Young <i>v.</i>	981
Charles <i>v.</i> Davis	1061
Chatfield <i>v.</i> League of Women Voters of Mich.	1024
Cheeseboro <i>v.</i> Little Richie Bus Service, Inc.	928
Chhim <i>v.</i> Golden Nuggett Lake Charles, L. L. C.	1011
Chief Administrative Judge; Hassan <i>v.</i>	907
Chon, <i>In re</i>	1062
Christian; Atlantic Richfield Co. <i>v.</i>	1050
Chuang <i>v.</i> California	981
Ciavone <i>v.</i> Horton	1022
CITGO Asphalt Refining Co. <i>v.</i> Frescati Shipping Co., Ltd.	960
City. See name of city.	
Clarke; Arias Coreas <i>v.</i>	1070
Clarke; Butler <i>v.</i>	935
Clarke; Grethen <i>v.</i>	983
Clayton Cty.; Bostock <i>v.</i>	960,984
Clements; Baccus <i>v.</i>	982
Cloninger, <i>In re</i>	969
Cobas <i>v.</i> Lindsey	1035
Cochise Consultancy, Inc. <i>v.</i> United States <i>ex rel.</i> Hunt	262
Collie <i>v.</i> South Carolina Comm'n on Lawyer Conduct	969
Collier; Murphy <i>v.</i>	901
Collins; Henderson <i>v.</i>	1049
Colorado; Blauch <i>v.</i>	1010
Comcast Corp. <i>v.</i> National Assn., African American-Owned Media	1051
Commissioner; Jennette <i>v.</i>	1070
Commission, Lawyer Discip., State Bar of Tex.; Barnes <i>v.</i>	1024

TABLE OF CASES REPORTED

xv

	Page
Cooper; Allen <i>v.</i>	1039
Cooper; Simpson <i>v.</i>	1011
Cordoba <i>v.</i> United States	983
Coreas <i>v.</i> Clarke	1070
Cornell <i>v.</i> Virginia	1070
Corona Regional Medical Center <i>v.</i> Sali	981
Corrections Commissioner. See name of commissioner.	
Coulter <i>v.</i> Tatananni	957
County. See name of county.	
Crystal M. <i>v.</i> Rhode Island Dept. of Children, Youth & Families	1013
CSRA; Little <i>v.</i>	1022
Cuevas <i>v.</i> Kelly	966
Cunningham <i>v.</i> United States Marshals Service	983
Cuomo; Kilpatrick <i>v.</i>	959
CVS Caremark Corp.; Taylor <i>v.</i>	1010
Daley <i>v.</i> Berryhill	966
Daley <i>v.</i> Maryland	958
Daniel; Smith <i>v.</i>	968
Daniels, <i>In re</i>	966
Daniels <i>v.</i> Brennan	906
Daniels; Noe <i>v.</i>	957
Daniels; Tanksley <i>v.</i>	957
Davis <i>v.</i> Bhatt	957
Davis; Bradshaw <i>v.</i>	1010
Davis; Butler <i>v.</i>	1061
Davis; Charles <i>v.</i>	1061
Davis; Fort Bend County <i>v.</i>	541,934
Davis; Gabriel Nunez <i>v.</i>	936
Davis; Honish <i>v.</i>	928
Davis <i>v.</i> Kansas	1049
Davis <i>v.</i> Louisiana	1060
Davis; Meraz <i>v.</i>	936
Davis <i>v.</i> United States	966
Davis; United States <i>v.</i>	984
Davis; Washington <i>v.</i>	1010
Deck <i>v.</i> Jennings	936
Department of Commerce <i>v.</i> New York	934
Department of Homeland Security <i>v.</i> Casa de Maryland	1038
Department of Justice; Ladeairous <i>v.</i>	935
Detroit; Hall <i>v.</i>	966
Deutsche Bank Trust Co. <i>v.</i> Robert R. McCormick Found.	1011
Dewberry <i>v.</i> Third Circuit Court of Mich.	1060
Dhillon; Kilpatrick <i>v.</i>	958
Diaz, <i>In re</i>	969

	Page
Diaz; Diep <i>v.</i>	936
Diep <i>v.</i> Diaz	936
Director of penal or correctional institution. See name or title of director.	
District Court. See U. S. District Court.	
District of Columbia Dept. of Employment Services; Taylor <i>v.</i> . . .	1022
Dixit <i>v.</i> Brasher	1011
Dixon, <i>In re</i>	969
Doe; Khouanmany <i>v.</i>	968
Doe <i>v.</i> United States	1049
Dolan; Sharp <i>v.</i>	1049
Draper <i>v.</i> Muy Pizza Southeast LLC	1060
Draper <i>v.</i> Pizza Hut	1060
Dread, <i>In re</i>	1010
Drevaleva; <i>In re</i>	1062
Drevaleva <i>v.</i> U. S. District Court	1023
Drozdovska <i>v.</i> Seminole County	1035
Dunn <i>v.</i> Price	929
Dunn; Price <i>v.</i>	1036
E. <i>v.</i> Oregon Dept. of Human Services	1010
Eason, <i>In re</i>	907
Easterwood <i>v.</i> Oklahoma	1061
E. C. <i>v.</i> Oregon Dept. of Human Services	1010
Edwards; Presbyterian Church U. S. A. <i>v.</i>	1038
Edwards; Taylor <i>v.</i>	983
Ekunife <i>v.</i> Philadelphia	1061
Elia; Kilpatrick <i>v.</i>	1010
Elliott <i>v.</i> Palmer	1010
Emulex Corp. <i>v.</i> Varjabedian	175,906
EEOC; R. G. & G. R. Harris Funeral Homes, Inc. <i>v.</i>	960,984
Evans; <i>In re</i>	1062
Evans <i>v.</i> United States	1022
Evergreen Freedom Foundation <i>v.</i> Washington	1062
<i>Ex parte.</i> See name of party.	
Express Scripts, Inc.; Adigun <i>v.</i>	1060
Fagan, <i>In re</i>	937
Fawemimo <i>v.</i> American Airlines, Inc.	936
Feldman <i>v.</i> Adoption Star Agency	1048
Ferguson; Jackson <i>v.</i>	1013
Fields; <i>In re</i>	1050
Fields; Kilpatrick <i>v.</i>	1010
First National Bank & Trust Co. of Williston; Solberg <i>v.</i>	937,1025
Fischgrund; C. B. <i>v.</i>	957
Fjord, <i>In re</i>	985

TABLE OF CASES REPORTED

XVII

	Page
Flanders; <i>In re</i>	1025
Florida; Forney <i>v.</i>	935
Florida; Francisco Vega <i>v.</i>	1038
Florida; Hawkins <i>v.</i>	1048
Florida; Oulton <i>v.</i>	983
Florida; Small <i>v.</i>	982
Florida Dept. of Children and Families; A. R. <i>v.</i>	937
Florida Dept. of Corrections; Bowles <i>v.</i>	1013
Florida Elections Comm'n; Lussy <i>v.</i>	1070
Food Marketing Institute <i>v.</i> Argus Leader	906
Food Marketing Institute <i>v.</i> Argus Leader Media	906
Forney <i>v.</i> Florida	935
Fort Bend County <i>v.</i> Davis	541,934
Franchise Tax Board of California <i>v.</i> Hyatt	230
Francisco Vega <i>v.</i> Florida	1038
Franke; Ross <i>v.</i>	959
Franklin <i>v.</i> May	906
Franklin; United States <i>v.</i>	1049
Freedom Foundation <i>v.</i> Washington	1062
Freer <i>v.</i> Berryhill	1048
Frescati Shipping Co., Ltd.; CITGO Asphalt Refining Co. <i>v.</i>	960
Frey, <i>In re</i>	907
Frost; Sturgeon <i>v.</i>	28
Funk, <i>In re</i>	937
Gabriel Nunez <i>v.</i> Davis	936
Gamble <i>v.</i> United States	678
Garcia <i>v.</i> Wilkie	1011
Garrett; <i>In re</i>	1038
Garza; Maria S. <i>v.</i>	968
Geeter <i>v.</i> Lesatz	1060
George Washington Univ. Hospital; Leonard <i>v.</i>	1049
Gibson; Vaughn <i>v.</i>	936
Gilchrist, <i>In re</i>	960
Gillard <i>v.</i> Illinois	958
Gillespie <i>v.</i> Reverse Mortgage Solutions, Inc.	969
Gilmore; Ridgeway <i>v.</i>	906
Giordani, <i>In re</i>	985,1013
Glover; Kansas <i>v.</i>	908,1024
GMAC Mortgage Corp.; Jackson <i>v.</i>	958
Golden Nuggett Lake Charles, L. L. C.; Chhim <i>v.</i>	1011
Google LLC <i>v.</i> Oracle America, Inc.	968
Gossage <i>v.</i> Merit Systems Protection Bd.	983
Governor of N. Y.; Kilpatrick <i>v.</i>	959
Governor of North Carolina; Allen <i>v.</i>	1039

	Page
Graham, <i>In re</i>	907
Green v. United States	928
Grethen v. Clarke	983
Grigsby v. Baltazar	906,1025
Grimsley v. McGinley	981
Guedes v. Bureau of Alcohol, Tobacco, Firearms & Explosives . . .	928
Gunchick v. Bank of America, N. A.	1070
Gun Owners of America, Inc. v. Barr	901
Haas v. Richmond	969
Hagen; Benham v.	1024
Haley; <i>In re</i>	1050
Hall v. Alabama	1048
Hall v. Detroit	966
Hall; Robinson v.	1013
Hall v. U. S. District Court	967
Halleck; Manhattan Community Access Corp. v.	802
Hanna v. LeBlanc	1048
Hardeman County; Harris v.	1048
Harris v. Hardeman County	1048
Harrison; Republic of Sudan v.	1
Hassan v. Marks	907
Hawkins v. Florida	1048
Haymond v. Helmand Investment, LLC	937
Haymond; United States v.	1061
H. E. Butt Grocery Co.; Peel v.	1010
Helmand Investment, LLC; Haymond v.	937
Henderson v. Collins	1049
Henkin; Kilpatrick v.	959
Hennager, <i>In re</i>	907
Hernandez v. Mesa	1025
Hernandez; Zinkand v.	1011
Herrera v. Wyoming	329
Herrold; United States v.	1060
Herron, <i>In re</i>	907
Hettinga v. Loumena	984
Hill; Polk v.	957
Hiramanek, <i>In re</i>	908
Hogan; Brunson v.	1070
Holguin-Hernandez v. United States	1039
Hollowell, <i>In re</i>	937,1060
Home Depot U. S. A., Inc. v. Jackson	435
Hon Chon, <i>In re</i>	1062
Honish v. Davis	928
Hoopskirt Lofts Condominium Assn.; Vurimindi v.	907

TABLE OF CASES REPORTED

XIX

	Page
Horton; Ciavone <i>v.</i>	1022
Householder <i>v.</i> Ohio A. Philip Randolph Institute	1023
Howard <i>v.</i> Jones	1022
Hower, <i>In re</i>	985
Hudnall, <i>In re</i>	969
Hungary <i>v.</i> Simon	928
Hunt; Cochise Consultancy, Inc. <i>v.</i>	262
Hyatt; Franchise Tax Board of California <i>v.</i>	230
Ibeabuchi <i>v.</i> Blomo	1038
Illinois; Gillard <i>v.</i>	958
Illinois Dept. of Financial and Professional Regulation; Shakari <i>v.</i> <i>In re.</i> See name of party.	1048
Intel Corp. Investment Policy Committee <i>v.</i> Sulyma	1050
Intermountain <i>v.</i> United States <i>ex rel.</i> Polukoff	1049
International. For labor union, see name of trade.	
International Assn. of Machinists Dist. 10; Allen <i>v.</i>	958
Isaiah <i>v.</i> Jones	1048
Jackson, <i>In re</i>	1023
Jackson <i>v.</i> Ferguson	1013
Jackson <i>v.</i> GMAC Mortgage Corp.	958
Jackson; Home Depot U. S. A., Inc. <i>v.</i>	435
Jackson <i>v.</i> Jackson	1035
Jackson Masonry, LLC; Ritzen Group, Inc. <i>v.</i>	1014
Jander; Retirement Plans Committee of IBM <i>v.</i>	1039
J. E. <i>v.</i> Oregon Dept. of Human Services	1010
J. E. C. <i>v.</i> Oregon Dept. of Human Services	1010
Jennette <i>v.</i> Commissioner	1070
Jennings; Deck <i>v.</i>	936
Johnson; <i>In re</i>	1062
Johnson; Booker <i>v.</i>	936,1050
Johnson; Precythe <i>v.</i>	935
Johnson; Williams <i>v.</i>	968
Jones, <i>In re</i>	959,1050
Jones; Howard <i>v.</i>	1022
Jones; Isaiah <i>v.</i>	1048
Jones <i>v.</i> Office of Administrative Hearings	966
Jones; White <i>v.</i>	966
Judge, Court of Common Pleas, Hamilton County, Ohio; Simpson <i>v.</i>	1011
Judge, Jefferson Circuit Court; Presbyterian Church U. S. A. <i>v.</i>	1038
Judge, Superior Court of Conn., Tolland Judicial District; Young <i>v.</i>	1060
Judge, Superior Court of Ga., Atlanta Judicial Circuit; Dixit <i>v.</i> . .	1011
Judicial Correction Services, Inc.; Thurman <i>v.</i>	1061
Kansas; Davis <i>v.</i>	1049
Kansas <i>v.</i> Glover	908,1024

	Page
Kaufman; <i>In re</i>	1025
Kee Nguyen; White <i>v.</i>	1038
Keeton; Long <i>v.</i>	983
Kelley; Booth <i>v.</i>	957
Kelly; Cuevas <i>v.</i>	966
Kenon <i>v.</i> United States	906
Kessler; Monte <i>v.</i>	958
Khounmany <i>v.</i> Doe	968
Khounmany <i>v.</i> United States	957
Killingbeck <i>v.</i> United States	1011
Kilpatrick <i>v.</i> Arp	959
Kilpatrick <i>v.</i> Cuomo	959
Kilpatrick <i>v.</i> Dhillon	958
Kilpatrick <i>v.</i> Elia	1010
Kilpatrick <i>v.</i> Fields	1010
Kilpatrick <i>v.</i> Henkin	959
Kilpatrick <i>v.</i> Kondaveeti	1010
Kilpatrick <i>v.</i> Robinson	1010
Kilpatrick <i>v.</i> Scott	959
Kilpatrick <i>v.</i> Volterra	1010
Kilpatrick <i>v.</i> Weiss	1010
Kilpatrick <i>v.</i> Zucker	1010
King <i>v.</i> Caliber Home Loans, Inc.	957
Kinney, <i>In re</i>	1013
Klein; Cadian Capital Management, LP <i>v.</i>	901
Klein <i>v.</i> Oregon Bureau of Labor and Industries	1060
Klemm; Rotkiske <i>v.</i>	959
Klingelhafer; Zell <i>v.</i>	981
Kondaveeti; Kilpatrick <i>v.</i>	1010
Konieczko <i>v.</i> Adventist Health System/Sunbelt, Inc.	1060
Kraus; Young <i>v.</i>	1049
Krott <i>v.</i> May	1022
Kun <i>v.</i> State Bar of Cal.	981
Kyei <i>v.</i> Swift	1022
Laake <i>v.</i> Turning Stone Resort Casino	958
Labor Union. See name of trade.	
Ladeairous <i>v.</i> Department of Justice	935
Lamps Plus, Inc. <i>v.</i> Varela	176
La Rose; Stoutamire <i>v.</i>	1011
League of Women Voters of Mich.; Chatfield <i>v.</i>	1024
League of Women Voters of Mich.; Michigan Senate <i>v.</i>	1024
LeBlanc; Hanna <i>v.</i>	1048
Lecuona <i>v.</i> Lecuona	1010
Lee, <i>In re</i>	966

TABLE OF CASES REPORTED

XXI

	Page
Leigh; Bell <i>v.</i>	1022
Lei Yin <i>v.</i> Biogen, Inc.	958
Leon <i>v.</i> New York City Dept. of Ed.	1022
Leonard <i>v.</i> George Washington Univ. Hospital	1049
Lesatz; Geeter <i>v.</i>	1060
Lincolnshire <i>v.</i> Operating Engineers	1049
Lindsay; Black <i>v.</i>	981
Lindsey; Cobas <i>v.</i>	1035
Little <i>v.</i> CSRA	1022
Little Richie Bus Service, Inc.; Cheeseboro <i>v.</i>	928
Livingston; Pierce <i>v.</i>	959
Long <i>v.</i> Keeton	983
Lorenzen; Taggart <i>v.</i>	554,934
Lorenzo <i>v.</i> SEC	71
Louisiana; Davis <i>v.</i>	1060
Louisiana; Ramos <i>v.</i>	968
Loumena; Hettinga <i>v.</i>	984
Lussy <i>v.</i> Florida Elections Comm'n	1070
Maddaloni; Pidanic <i>v.</i>	1013
Madkins, <i>In re</i>	907
Manasquan Savings Bank; Smith <i>v.</i>	907
Manhattan Community Access Corp. <i>v.</i> Halleck	802
Maria S. <i>v.</i> Garza	968
Marks; Hassan <i>v.</i>	907
Martin <i>v.</i> Whitaker	958
Martuscello; VanGuilder <i>v.</i>	1049
Maryland; Daley <i>v.</i>	958
Mason, <i>In re</i>	985
Massachusetts; Ardaneh <i>v.</i>	1035
Mathis <i>v.</i> United States	928
Matthews <i>v.</i> Robles	968
May; Franklin <i>v.</i>	906
May; Krott <i>v.</i>	1022
McClinton; <i>In re</i>	1050
McDonough <i>v.</i> Smith	934
McGinley; Brooks <i>v.</i>	1038
McGinley; Grimsley <i>v.</i>	981
McKinney <i>v.</i> Arizona	1050
McMahon; Vargas <i>v.</i>	928
McMahon; Vargas Romero <i>v.</i>	928
McManis Faulkner, LLP; Shao <i>v.</i>	957
McNeill <i>v.</i> Wayne County Third Circuit Court	935
Mellen; Winn <i>v.</i>	928
Meraz <i>v.</i> Davis	936